

Galaxy[®]

M A G A Z I N E

OCTOBER 1960

50¢

GALAXY

K

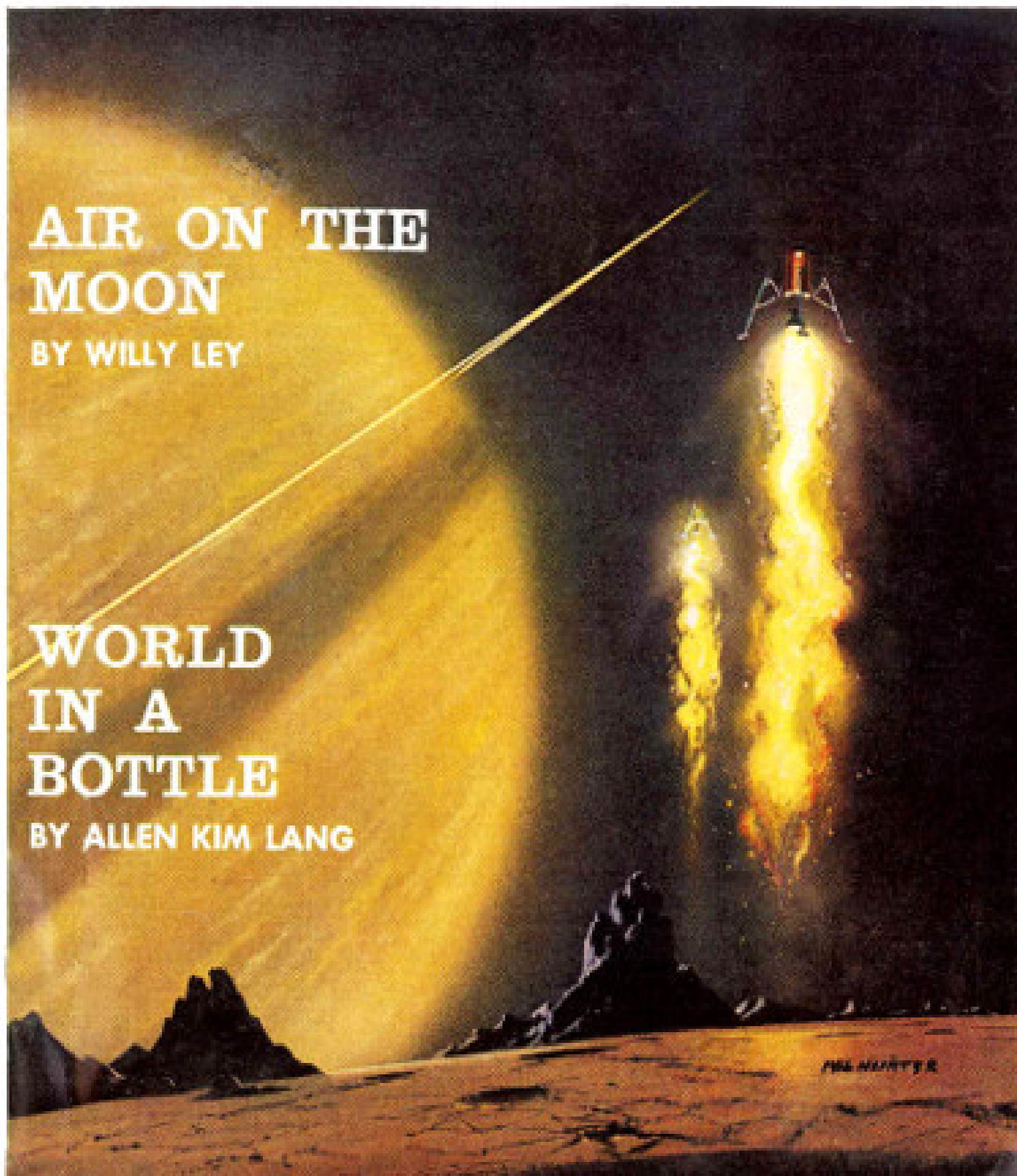
OCTOBER 1960

AIR ON THE MOON

BY WILLY LEY

WORLD IN A BOTTLE

BY ALLEN KIM LANG



PHIL HARTY R

Galaxy[®]

MAGAZINE

OCTOBER 1960

50¢

GALAXY

K

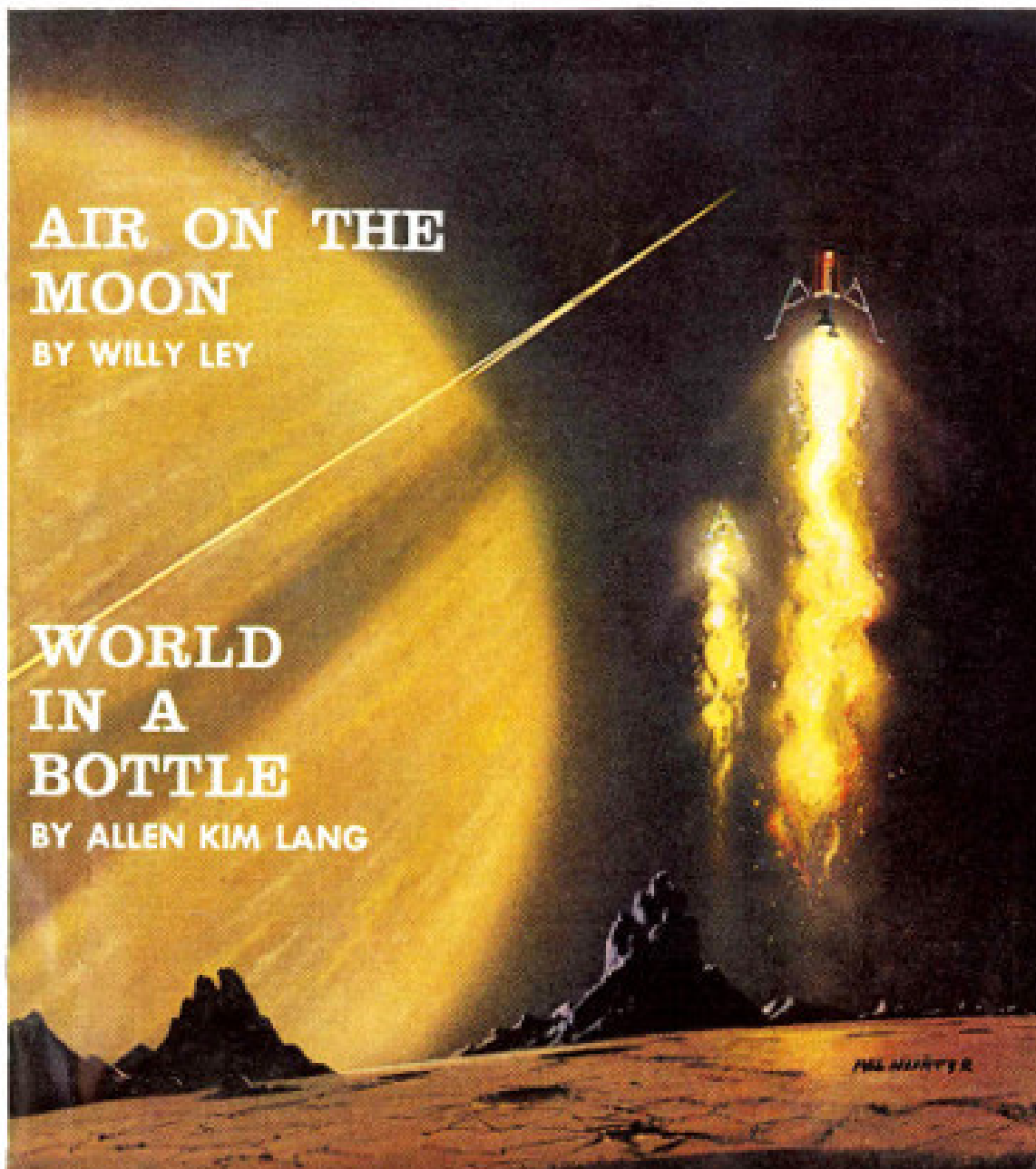
OCTOBER 1960

AIR ON THE MOON

BY WILLY LEY

WORLD IN A BOTTLE

BY ALLEN KIM LANG



The Project Gutenberg eBook of The Imitation of Earth

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Imitation of Earth

Author: James Stammers

Illustrator: Carter

Release date: April 7, 2016 [eBook #51682]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/51682

Credits: Produced by Greg Weeks, Mary Meehan and the Online
Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE IMITATION
OF EARTH ***

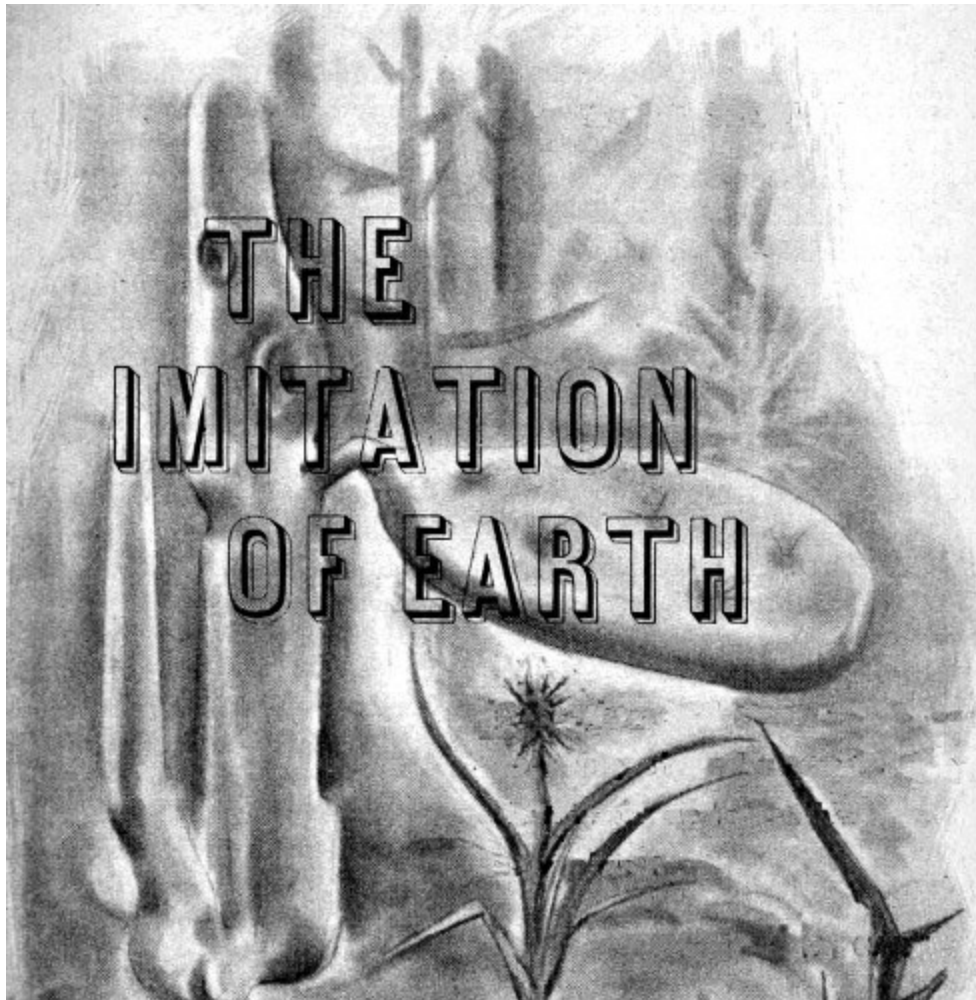
THE IMITATION OF EARTH

By JAMES STAMERS

Illustrated by CARTER

**[Transcriber's Note: This etext was produced from
Galaxy Magazine October 1960.**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**



Once they had been human—now they shared a remarkable destiny on an incredible new planet....

He was in some dark, moving medium which pressed him gently and released him and pressed against him again with irregular rhythm. He could not feel his hands. He could not feel any part of his body, except a sort of itching in his calf.

He thrust downward to relieve this mild irritation and, surprisingly, seemed to rise up. He seemed to be alive. He had no idea where, or even when, or whether these were valid questions, for the ship had been entering hyper-spacetime when they hit the asteroid belt. Warps and elongations took place in hyper-spacetime. Perhaps he was now a hyper-spaceman.

He could recall his name. It was John Shepherd. He could remember objective events such as Doctor Adelitka Wynn creating a scene in the Mars terminal bar. Her sociology was better than her sense, as she accused him of making a pass at her. He would have liked to, perhaps, but ship's etiquette said: "Crews date, captains wait, space is not the place." He and she had been the last alive, and the last image he had seen on the screen had been a sun. Whose sun, which sun, and where were just uninformed speculations. But he was alive and conscious of himself. And he was buried deep in something.

He tried to define his feelings.

The alternating pressure of the darkness was felt only in one spot, in the area of his heart and about the size of a small bean. The occasional itching came from below this. He thrust again and again rose upward. Yet he had no heart, or no sense of hearing, for he could hear no sound of pumping. After several years in space he was only too familiar with the sound of his own blood circulating in his veins. The voids of space turned men into especially noisy bodily orchestras. There was none of that now.

He thought of himself as having the shape of a man, but perhaps that was just habit. The only area he could in fact feel was the bean slightly higher than his middle ... and a column perhaps attaching him to the bean ... and this itching down below, in what seemed to be one doubled-up leg. He thrust again and again, rising higher each time. There was nothing else to do. He never felt tired. He never felt anything, except the itching.

Eventually he felt a slackening on the upward pressure. He had kicked with his one leg, risen and found no resistance. Warmth played over him and he uncurled his head. So he had a head.

Habit had accustomed him to seeing with his eyes, from one set focal point. It was some time before he found he could see, in a general way, from any point on his exposed surface.

He could even see parts of himself, where the edges doubled over. It was like being able to run round a large gallery on the top of a dome, looking out at the view—and yet being the entire dome. He was green! He looked down beneath him and saw a long green pillar, tubular and shiny, rising out of a brown background.

He could still feel the beating pressure down below. It struck him that he was a plant, growing from seed which presumably his liquified, atomized or dissolved body had provided, and emerging on the surface of a planet.

Immediately overhead a bright orange satellite swung through a brilliant yellow and white sky. Unless there were two suns here, this was no more than a satellite body, trapped in orbit, for he could feel the fierce beat on his surface from another source on the other side of the sky. This was a vast fiery globe traveling at immense speed.

He felt a vigorous thrusting inside his structure as he expanded. But darkness rushed up from the bottom of the pit in which he stood, and cloud came in to mask the sky.

The general inference was that he was on a very warm planet around which the bright orange satellite swung, and that both were circling the hot sun at a speed far exceeding that of Mercury. Naturally that was only a subjective impression. But the little he had seen did not suggest any system he had ever heard of. He curled up.

Each time the sun went past he grew further out toward the edge of the pit. He branched and clung to the earth with subsidiary tendrils. It was exactly as though he were clawing with fingers into the earth, except that he did not remove them but simply grew on past them. When he reached the top of the pit, and accustomed his seeing to the greater distances now before him, he saw a violently active world of fire and steam. The ultra-rapid rotation of this planet made day and night into the flickering of a primitive film. Mountains of earth were raised up, broke off and shattered. Remote volcanoes fizzed into action briefly like fireworks and faded, their tremendous display spent. Whole swamps heaved and moved with internal

motion. He became big enough to be able to lose a side creeper without giving it a thought. He felt no pain.

There were advantages in being a plant, and particularly in being an apparently highly active creeper. He could see from any point in his enormous network. He could organize races between his outlying tendrils. He found that the orange satellite exerted quite a strong pull on his internal sap system, which was not unpleasant.

The first sign of life other than himself, oddly, came up from a neighboring pit.

It lay within the area he had grown over, but he had never bothered to send down shoots and side creepers into it. It was a peculiar sensation to recognize—Dr. Adelitka Wynn.

He sent out a sly root and detected that she was a bulb formation. Her indignation was transmitted violently along the ground, in a series of sharp shocks. She stood in tall sheaves of broad-bladed grass which rustled in the wind. He found it was intelligible, though of a different timbre than the deep, rough scraping he made with his own hairy leaves.

"Kindly keep to yourself," she said in effect.

Her leaves had a high hissing note. He marveled that she had managed to retain the same unpleasant approach to life.

She was objectionable again when she had filled her pit and found she could not extend onto the flat earth beyond, because he had already covered the area.

"Come on," he said. "We've got the whole world to ourselves."

"I can't," she answered hissing. "You have spikes on your stems. They'll tear my leaves."

He shut off the sap from a whole subsidiary system, killing it. She spread over his withered shoots and leaves without a sound of acknowledgment. They both developed toward the marshes.

As he approached, leaving her slower bulb-formation behind as he raced tendril ahead of tendril down the slope, he saw there were other forms of life, in the water.

He said nothing. But he quietly doubled his thorns and built up a reserve in his advance tendrils, so that he could rush an armored shoot across the ground at high speed if necessary. The aquatic life moved and died extremely fast. Whole species expanded from a single specimen, and for no visible reason extinguished themselves. Life on the planet did not seem to be stable. It was highly experimental. He had been down at the marsh for some time before the first crablike object came into existence and began to leave the water in fitful dashes. He gave it an early dose of his thorns. Thereafter it left him alone.

The former Dr. Adelitka Wynn, however, approached the marsh without looking.

He watched with satisfaction. She was a golden brown and tender green, and highly succulent apparently to the crab tribe. She cried for help.

They were, after all, the only two of human origin on the planet. So he put his reserve to work and sent an armored set of shoots racing across the ground as a barrier between her and the marsh. The crab tribes retreated.

"Thank you," she said, regenerating her clipped stems.

"That's the first time you've ever said that," he said hoarsely.

"I'm sorry. I am ... really glad you're here."

"How glad?"

"This is a most peculiar world," she said, changing the subject. "I don't recognize it at all."

He said nothing but sent out an advancing barrier of thorns to clear a small area of marsh for her. He performed small services with his roots and tendrils, levering apart her bulbs where they were in danger of rotting, brushing small insects off her leaves when they became established in colonies. His main trunk was now thicker than the body of a man, and he covered several miles. In the marsh, his shoots were thick and black, standing like dark fingers deep into the ooze. Out in the drier areas, which seemed to be spreading, he modified his system to conserve internal

moisture. He grew fine multitudes of hairs against the heat and predatory insects. Dr. Adelitka Wynn covered several acres herself, surrounded by his thorn barriers.

When she felt well established, she flowered in great blue blossoms, heavy with orange pollen. He had been waiting, and flowered all along his immense length in every color of the spectrum, mile upon mile of wide flat flowers, open and ready for the breeze. She did not protest. He sent clouds of pollen from his anthers, turning the landscape into a fine mist that drifted over her. He covered her with several pounds of fine golden dust.

"Thank you," she said.

He wondered whether she would produce a bulb like her or a young creeper like himself. He kept young tendrils hanging around her like a catcher's glove, until she told him to go away and let her seed in peace.

She seeded in a particularly stormy period and in profusion. She did it with a gusto and variety that amazed him. Seeds with airborne devices, parachutes, airvanes, twirling rotators, balls of down, with hard shells, soft shells. She even kept some pods, and, with a gesture almost tender, allowed ripe seeds to fall into his waiting leaves. He passed these very slowly and carefully along his system, from cup to cup. He cleared a slope near the marsh and brushed deep furrows with his thorns to put the seeds in. He planted them gently and grew an open lattice of thorny stems above them, so that only the sunlight could get in. As they grew, he retreated his protective screen to allow them air and free ground of their own. They shot up straight and tall, saplings headed for the stars.

The other seeds had taken hold in remote regions, in marshes, on the rising and falling mountains, and in great flat stretches of pulverized volcanic dust. He found he was aware of them and could, by concentrating, even gain a vague impression of the ground around them, as if each were a locus of his consciousness. He also found a telepathic link now existed between him and their mother. It was vague at first but it became clearer, eventually superseding speech between them.

None of their children had flowers. Only the two of them flowered, pollinated and seeded with regularity. Their seeds spread in a variety—and variety was the word, for in the first seeding she had packed as many variations as she could imagine. There was, in his opinion, too much emphasis on grasses after her own general style and too few creepers like himself. But that was a small detail. The original form did not last long in any case. Some of his seedlings had been enclosed by the rising marshes and were now more comfortable under water than above. A few wilder members even retained a measure of mobility and spent their lives floating from place to place.

He did not entirely approve of this. But, as the marshes grew under the constant rain and acquired an unpalatable saltiness so that they were virtually seas, he saw the sense of this development. He now covered, by himself and in proxy through his seeds, almost the entire land area of the planet. She extended just as far. They came to a working agreement to leave certain areas primarily for the grass-like progeny and others for his more treelike seedlings. The global view led them both to consider the same experiment.

There were occasional worms and crablike creatures, minute bodies floating with his somewhat gipsy water-seedlings, but they and their own seeds were the only significant forms of life on their planet.

"Shall we see what we can evolve?" he suggested.

"I had that thought myself," she answered.

"At least we know the end product. It seems unlikely, now, but man must have come from much this environment on Earth."

"Very well. Where shall we start?"

"I have some enterprising water-plants," he said diffidently.

"We have."

It was an ambitious program. But, on the other hand, life on Earth had presumably also developed against all probabilities. Here on their planet

they could provide continual intelligent guidance.

They went out into their water-plants and sensed through their miles of sensory surfaces the most favorable areas of the planet. They encouraged the water-plants to breed, cross-breed and extend. They fed fractional parts of themselves to each other, loaded certain areas with nutrient life, encouraged mobility.

Great continental areas rose and sank. Generation after generation was rapidly produced and as rapidly developed and died. The planet was littered with the remains of unsuccessful experiment. But, mainly by concentration on iron-rich diets and localizing their sight perceptions repeatedly in one particular part of their species, they produced plants which no longer responded to them. They had separate existence of their own.

At last they managed to lure repeated generations out of the water and onto land.

They had the advantage not of merely controlling the environment but of being the environment. Subject to the violence of volcanoes and the endless shifting of the planet's crust, aberrations in the plane of rotation, and rapid changes of climate, as ice mounted and retreated and heat waxed and waned, within these limits they could and did make arbitrary decisions. By withdrawing from an area, either of them could create a desert. By doubling their rate of growth in a local tributary of themselves, they could create a forest. Their descendant seeds were as much part of themselves as the original trunks. In fact, they rarely distinguished between that original growth and later developments. It came as quite a surprise to them both to find there was not much left of the first bulb clusters and the first sprawling creeper.

Once they had induced the more-or-less fishes to leave the water, progress was rapid.

There was never a difficulty quite as great as that again. On land, wherever the land happened to be at the time, they could induce generations of different shapes and sizes by modifying the vegetation—themselves, in

their many forms. He took his branches higher and higher in a sparse zone, for example, to encourage the necks of the local animals to extend. They were remodeling their program deliberately on their old Earth, cutting off what they knew to be unsuccessful by-paths and nurturing the developments that should lead to man. The original crablike inhabitants had long since passed away, though they had used some features of these. The insects continued to multiply on their own by sheer probability and without their guidance.

They were both ruthless in their experiments. Once they abolished whole races of enormous vegetarians by withholding themselves in inaccessible areas. Like the dinosaurs, whom they resembled closely, these great reptiles were too big and too stupid.

She blamed him for having allowed them to feed too many generations on too highly radioactive parts of themselves.

"I can't be everywhere at once all the time," he said.

To annoy her, and because he had been a space captain, he encouraged an entirely abortive series of flying reptiles.

His excuse was true. By exerting his consciousness to its maximum, he could be aware of almost all the planet simultaneously, but this awareness lacked intensity and definition.

The comfortable maximum for concentration was about a hundred square miles. If he focused his attention within a square mile, his roots and trunks and branches hissed with massive life and rapidly propagated themselves into a thick jungle. This in turn multiplied the surface areas and diffused his attention. There was a lot going on in the undergrowth that they both missed.

They almost missed their ultimate triumph.

The satellite of their planet had cooled. The sun around which they swung was shielded by thick banks of the carbon dioxide they breathed off from their myriad bodies. They had stabilized most of the animals. Despite the

repeated cataclysms they had arrived at descendants who could flower just as they themselves originally had flowered.

As a matter of fact, he was quite deeply taken with an offshoot wood of flowering trees. In the guise of honeysuckle he spent most of his time wooing tenderly round their trunks, to the fury of her grasses and the lashing of her reeds.

An object that was a rudimentary improvement on an ape came shambling into the wood where he was and quite idiotically tore off some of his prettier flowers.

On checking, he found there were several varieties of this object in various parts of the planet. None appeared any better than this brute, who whizzed through the trees and bred and died in a flicker of time.

"He'll never last," he said to her. "His metabolism burns out before he has time to do anything."

"He'll reproduce all the faster," she answered. "And leave those trees alone. At your age, really!"

She was right about the prototype brute. Never in their experiments had they produced a creature that was so active. They had raised animals that bred much faster, but none that bred at a reasonable pace and also kept flashing about the planet in a restless motion.

They had to litter the ground with suitable seeds before the humanoids stopped long enough in one spot to try planting for themselves. And even then, the idea did not take root for many many generations. But here and there, at last, they had the beginnings of a culture, and the beginnings of speech. The telepathic content of the humanoids' speech was intelligible to them, though not apparently intelligible to the humanoids themselves.

They concentrated on the temperate zones, where they could most easily encourage the humanoids to stand still from generation to generation. The humanoid dwellings flickered into existence and decayed too rapidly for any reliable observations until several tribes of them took to using stone for building materials.

"Well," he said thankfully, "at last I can tell where they are without dashing from branch to branch like one of your monkeys."

He still did not believe her monkey experiments had had much to do with it. Secretly he suspected she had encouraged that development to annoy him—by putting multitudes in his hair, so to speak. It was just and proper, therefore, that the humanoids trampled all over her grasslands by preference.

It was in this mood that he created cool groves of tall trees and concentrated in them thoughts of love and pleasure.

The humanoids took the hint remarkably quickly. He had many happy generations encouraging the humanoids to sport in his groves. She was furious. But trees were his province and there was nothing she could do about it.

"You're debasing them," she complained.

"They're enjoying themselves, aren't they?"

"Voyeur!"

Well, he frankly enjoyed the swift rush of little pink bodies in and out of the groves. He was sorry when she succeeded in countering with a sterner line of thought, bred out of her deserts and thin-grassed mountains, where she was full of thought of privacy, and continence, and wonder and the stars. When he could, he made life uncomfortable for these higher-minded generations. He was never slow to create sybaritic and sensual surroundings to knock them off their mental perches. In one group of islands—which she could not reach because his pines starved out her seeds before they had a chance to establish—he had a series of permanent statues erected to himself by the humanoids, and he had frank and open worship. He considered it very proper. He maintained a cool and bracing temperature in the trees around the sandy shores.

He had passed through four or five hundred generations of giant redwoods before the little humanoids established themselves in the cities across the planet. Many of their activities were too fast for him to perceive, but he could contemplate their cities.

These were temporary structures, on the scale of the thrusting growth he felt in one of his redwoods. Still, to these dizzy little humanoids no doubt the cities lasted long enough. It was rare now for him to pick up a humanoid thought. Unlike their first models, the present generations thought at the

high speed which characterized their entire life. A blurred flicker of an impression to him was apparently the whole life's output of one of her contemplatives sitting in a cave, until he fell to pieces and was whizzed away.

The pink varieties no longer worshipped him, save fitfully, but he still had a pleasant range of warmer-colored humanoids whom he could tempt into an orgy. This kept him deep in the forests on the central belt of the planet.

She signaled to him from across the main ocean. He transferred his consciousness to join her on the edge of one of her wide prairies.

"I think we've done very well," she said.

"Surely you didn't call me all the way here just to say that."

"Yes. It really is Earthlike, isn't it? I felt it was about time you congratulated me."

He thought back.

"I don't remember, now," he said. "But it seems to be roughly similar."

"Roughly! After all this time, you dare to suggest I have only achieved a rough similarity? I was a trained sociologist, kindly remember. It is *exactly* like Earth."

He looked patiently up at the satellite and the stars. She was detailing the achievement interminably.

"It's very difficult to tell," he said, interrupting her. "Our time scale is quite different from what it was on Earth. These humanoids of ours breed and die like ephemerids."

She rustled impatiently.

"If you took trouble to examine the species from their time scale, you would find it is precisely the same as Earth time to them."

"Is it? Very well, I believe you. We have created an exact duplicate of the other Earth. Congratulations."

"You're just agreeing without proof. I have evidence to show the sociology is a detailed replica. These humanoids are repeating human history exactly as we knew it! One of our ivy shoots even reported a tombstone marked 'Killed in the Battle of Bunker Hill, June 17, 1775.'"

"Now you're exaggerating!" he said. "How could they possibly duplicate a time system that applied on the other Earth?"

"What other Earth?" she said.

*** END OF THE PROJECT GUTENBERG EBOOK THE IMITATION
OF EARTH ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.